AS TO THE ADMISSIBILITY OF

Application No. 14098/88
by Roy GASPER
against Sweden

The European Commission of Human Rights sitting in private on 10 December 1990, the following members being present:

MM. C.A. NØRGAARD, President
S. TRECHSEL
F. ERMACORA
G. SPERDUTI
E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
Mrs. G. H. THUNE
Sir Basil HALL
MM. F. MARTINEZ RUIZ
C.L. ROZAKIS
Mrs. J. LIDDY
MM. L. LOUCAIDES
A.V. ALMEIDA RIBEIRO
M.P. PELLONPÄÄ

Mr. H.C. KRÜGER, Secretary to the Commission.

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 18 May 1988 by Roy GASPER and others against Sweden and registered on 5 August 1988 under file No. 14098/88;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

The applicants are the following:

1. Roy Gasper, a Swedish citizen born in 1940 and resident in Malmö,
2. Lars-Erik Hjelm, a Swedish citizen born in 1935 and resident in Malmö,
3. Stig Nissen, a Swedish citizen born in 1946 and resident at Vintrie.

Before the Commission the applicants are represented by Mr. Göran Ravnsborg, a lecturer at the University of Lund.

The applicants are taxi owners and holders of taxi licences for the area of Malmö. The applicants have previously been members of the Economic Association of Malmö Taxi (hereinafter "MTEA"), through which they were affiliated to a dispatch exchange (beställningscentral) run by MTEA.

The applicants resigned from MTEA, the first applicant on 31 December 1980, and the second and third applicants on 31 December

1981. They thereby lost their automatic subscription to the Malmö dispatch exchange. The applicants unsuccessfully applied to join the dispatch exchange as independent subscribers.

On 22 June 1983, they lodged an application with the County Administrative Board (länsstyrelsen) of the County of Malmöhus to de-monopolise the dispatch exchange and to declare it open to everybody to establish a common taxi dispatch exchange.

On 5 December 1983, the County Administrative Board rejected the applicants' application. Its decision was quashed by the Council of Transportation (transportrådet) for formal reasons and the application was sent back for re-consideration. On 19 June 1984, the Board again rejected the application. The applicants' appeal to the Council of Transportation was rejected on 20 November 1984.

The applicants appealed to the Government. The first applicant later withdrew his appeal. On 26 November 1987, the Government struck off the first applicant's appeal and decided not to take any action with regard to the other applicants' appeals. In their decision, the Government noted inter alia that the common dispatch exchange for the area in question was run by the Taxi Central of the Malmö limited liability company since 1986 and that taxi orders were given to the second and third applicant by the Taxi Central on the basis of an agreement between Roys Taxi Economic Association, of which the applicants are members. They further noted that Roys Taxi had applied to the County Administrative Board for the establishment of a supplementary taxi dispatch exchange, but that the question had not yet been decided.

Before the Commission the applicants allege a violation of their effective right to negative freedom of association in that they cannot form a common dispatch exchange. They invoke Article 11 in conjunction with Article 14 of the Convention. They also complain that their claims were dealt with in an administrative process and invoke Article 6 para. 1 and Article 13 of the Convention. Finally, the applicants complain that the refusal to withdraw MTEA's monopoly was in violation of Article 17 of the Convention.

The Commission has examined the applicants' separate complaints as they have been submitted by them. However, after considering the case as a whole in the light of the contents of Government's decision, the Commission finds that it does not disclose any appearance of a violation of the rights and freedoms invoked by the applicants.

It follows that the application is as a whole manifestly ill-founded within the meaning of Article 27 para. 2 of the Convention.

For these reasons, the Commission by a majority.

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Commission President of the Commission

(H.C. KRÜGER) (C.A. NØRGAARD)